

TRIMCO GROUP



TRIMCO GROUP

Anti-Bribery and Anti-Corruption Policy

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HIGHLIGHTS

Acting responsibly is at the core of TRIMCO. We are committed to conducting our business in an honest, ethical, and transparent manner, and we require each of our employees and partners to abide by the same commitment to create a fair and ethical working place.

Bribery

A bribe is anything of value that is received or given to improperly influence a business decision. A bribe does not actually have to take place - promising to give a bribe or agreeing to receive one also constitutes bribery. Bribery may not always be in the form of cash payments and may take many other forms, including gifts, entertainment, travelling and facilitation payments. Cash payments or gifts are never allowed.

Zero-tolerance

At TRIMCO we have a zero-tolerance approach towards bribery and corruption which covers both interactions with public and private sectors. This means that we do not offer, promise, give or accept bribes and expect that you will not do so as well.

Gifts, meals and entertainment

The policy is not meant to prohibit normal, appropriate and customary hospitality, which however may differ from country to country depending on culture, festival etc. The giving or receiving of gifts, meals and entertainment should be proportionate and reasonable for the circumstances, for legitimate purposes only, not with a view to improperly impact third-party decisions, and always comply with the TRIMCO Gift, Entertainment and Hospitality Policy. If you are in doubt as to whether proposed gifts, meals or entertainment to be given or received are appropriate, please consult TRIMCO's HR or Legal & Compliance team.

Books and records

We keep our records clear, accurate and complete. We deliver fair and accurate reporting of our financial results in line with national law and generally accepted accounting principles.

Applicable laws

This policy requires compliance with the highest ethical standards and all relevant and applicable laws, regulations and rules on bribery and corruption.

Remedies in case of breach and violations

In case of policy violations we might decide to terminate your employment or other business relation and, if warranted, legal proceedings may be brought against you.

Reports

If you experience or suspect any violations of this policy it is vital for us that you report it either through our normal communication channels or via our whistleblower scheme "Ethics Hotline" available through our website.

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INTRO

Acting responsibly and with integrity is at the core of Trimco Group (“TRIMCO”, “we”, “us”, “our” etc.). We are committed to conducting our business in an honest, ethical, and transparent manner in all our business dealings and relationships wherever we operate. We require each employee working at TRIMCO, and each contractor of TRIMCO, to abide by the same commitment to create a fair and ethical working environment.

Scope

This Anti-Bribery and Anti-Corruption Policy (“policy”) applies to:

- all employees, directors, officers and temporary workers of TRIMCO, including but not limited to any third-party business partners (such as consultants, contractors, suppliers etc. who work on our premises or acting on behalf of us or any of our employees (collectively, “you”), and
- Trimco Group’s wholly-owned subsidiaries, and
- any other controlled affiliate of Trimco Group,

collectively with Trimco Group and its wholly-owned subsidiaries, unless such controlled affiliate has adopted its own policies that are consistent with the provisions of this policy.

TRIMCO and its affiliates are committed to operating with the highest ethical standards and this includes preventing bribery in our business activities. This policy sets forth key principles and standards, as well as key supporting policies and procedures, with respect to addressing bribery risks in our business, which should guide your conduct.

Purpose

This policy addresses the prevention of bribery and corruption, towards which TRIMCO has a zero-tolerance approach, defines our understanding and position on compliance issues related to bribery and corruption, and requires compliance with all relevant and applicable laws, regulations and rules on bribery and corruption. Therefore, this policy is intended to supplement all applicable laws, rules and other corporate policies.

Communication

This policy is communicated to all TRIMCO employees either as a standalone policy, as part of the local Staff Handbook, or both. The policy is also communicated to relevant TRIMCO business partners either as a standalone policy, as part of the relevant agreement, or both.

In locations where English is not an official language, this policy is communicated in local language to the employees by the local entity that employs them. However, this English version will always prevail.

This policy should be read in conjunction with the TRIMCO Code of Conduct (“CoC”), which serves as a guide for how you should conduct yourself as a member of the TRIMCO team.

APPROACH

Zero-tolerance towards bribery and corruption

Do not give or receive bribes, including facilitation payments.

We have, over many years, built a reputation for conducting business with honesty and integrity. It is vital for us to maintain this reputation as it generates confidence in our business from our customers, clients, investors, investees and others – which ultimately means it is good for business.

Therefore, we have a zero-tolerance approach towards bribery and corruption. This commitment comes from the highest levels of management and you must meet this standard.

This means that we do not offer, promise, give or accept bribes in furtherance of our business and expect that you will not do so as well. The prohibition covers interactions with public officials as well as individuals in the private sector.

DEFINITIONS

Bribery

A bribe is anything of value that is offered, promised, given or received, and which is intended to influence their decisions improperly or to gain an improper or unfair advantage in promoting, enhancing, obtaining or retaining business. Promising to give a bribe or agreeing to receive one also constitutes forms of bribery. Bribery may not always be in the form of cash payments and may take many other forms, including, but not limited:

- Gifts, travel, entertainment and hospitality;
- Political contributions and charitable donations;
- Employment opportunities, directorships, internships or secondments;
- Procurement and service contracts;
- Phony jobs or “consulting” relationships;
- Excessive discounts or rebates;
- Non-arm’s length loans, forgiveness of debt or other transactions; or
- Fees, rewards, contracts, services, concessions, kickbacks etc.

Facilitation payments (also called “grease payments” or “speed payments”) are also a form of bribe. It is small payments made to secure or speed up routine actions or otherwise induce public officials or other third-parties to perform routine functions they are otherwise obligated to perform, such as issuing permits, approving immigration documents or releasing goods held in customs. Facilitation payments do not include official, legally

permitted statutory or administrative fees formally imposed and codified by government agencies for expedited service.

All kind of bribes are of course - and due to our zero-tolerance - prohibited.

Public officials

Interactions with public officials require enhanced scrutiny and sensitivity.

A public official is any person who is employed by or is acting in an official capacity for a government, a department, agency or instrumentality of a government, or a public international organization. This includes elected or appointed persons who hold legislative, administrative or judicial positions, such as politicians, bureaucrats, civil servants, and judges. It also includes candidates for political office, political party officials and persons who perform public functions, such as professionals working for public pension plans, public health agencies, water authorities, planning officials and agents of public international organizations, such as the United Nations or World Bank. A public official may also include employees of government-owned or controlled businesses, including sovereign wealth funds and state-owned utility companies. For example, if a government has an interest in a utility and exercises control over the activities of that utility, then the utility's officials are likely to be considered public officials. Third-parties acting at the direction of these individuals and entities should also be considered public officials.

There is increased sensitivity and scrutiny of dealings with public officials because this has traditionally been an area where bribery activity is more likely to occur. Be cognizant of these risks in your dealings and interactions with public officials and consider how your actions may be viewed. For example, payments, gifts or employment to close relatives of public officials have been treated by enforcement authorities as direct payments to the public officials and, therefore, may constitute violations of law.

Hiring public officials or persons referred by public officials requires enhanced scrutiny.

Hiring public officials or applicants related to, or referred by, public officials could be seen as a bribe in certain situations and should be subject to enhanced review to ensure that the related risks are appropriately mitigated. Consult with HR for procedures related to identifying and mitigating these risks.

In practice, situations can be complex and this policy does not cover every circumstance that you may encounter. When in doubt, please contact HR, Legal or the Compliance team for assistance.

Third parties

Third parties are not permitted to pay bribes on our behalf

TRIMCO may be scrutinized and/or prosecuted for failing to detect and prevent bribery by a person associated with it. This includes any individual or entity that performs services for or on behalf of TRIMCO. Employees should avoid doing business with third-parties who do not have a zero tolerance approach to bribery and corruption.

This means due diligence should be undertaken on contractors, joint venture partners, agents and other third-parties to establish their anti-bribery credentials, where warranted by the assessed level of risk. This due diligence could include meeting with them to better assess their business practices and anti-bribery and corruption policies/controls, and making inquiries into their reputation and past conduct. Other risk mitigations strategies, such as including anti-bribery language in agreements, should also be implemented, as appropriate, as well as our suppliers must sign the TRIMCO Supplier Code of Conduct, as part of the Supplier Agreement, prohibiting bribery and corruption.

Gifts, meals and entertainment

The giving or receiving of gifts, meals and entertainment should be proportionate and reasonable for the circumstances, for legitimate purposes only, and not with a view to improperly inducing a third-party to misuse their position, as a quid pro quo for official action or with linkage to an official decision.

This policy should be read together with TRIMCO Gift, Entertainment and Hospitality Policy, and these are not meant to prohibit normal, appropriate and customary hospitality, which however may differ from country to country depending on culture, festival etc.

To help ensure that our practices are reasonable, appropriate and otherwise in accordance with applicable regulatory requirements, certain gifts, meals and entertainment must be logged/recorded and/or pre-approved.

If you are in doubt as to whether proposed gifts, meals or entertainment to be given or received are appropriate, please consult TRIMCO's HR or Legal & Compliance team.

Gifts

Gifts (e.g. merchandise, event tickets) given to or received from persons who have a business relationship with TRIMCO are generally acceptable, if the gift does not exceed local triviality limits (if applicable) or USD100, whichever is lower, and is reasonable in value, infrequent, appropriate to the business relationship, and does not create an appearance of impropriety. No cash payments should be given or received.

Meals and entertainment

Meals and entertainment (e.g. sporting events or the theatre, concerts, rounds of golf) given to or received from persons who have a business relationship with TRIMCO are generally acceptable, but again only if the meal or entertainment does not exceed local triviality limits (if applicable) or USD100, whichever is lower, and is reasonable in value, appropriate to the business relationship, infrequent, does not create an appearance of impropriety, is otherwise in accordance with applicable laws and regulations, and if a representative from the sponsoring organization (the party paying for the meal or entertainment) is present at the event. For the avoidance of doubt, if a representative from the sponsoring organization is NOT present at the event, the meal or entertainment would be considered a gift. Also, be

aware that many jurisdictions have laws restricting meals and entertainment given to public officials or their close relatives that must be followed.

Repetitive gifts, meals and entertainment

Gifts, meals and entertainment that are repetitive, no matter how small, may be perceived to be an attempt to create an obligation to the giver and should not be provided or accepted. Gifts or entertainment given close in time to when a decision impacting TRIMCO's business is being made (including by a private business partner) may be perceived as a bribe in return for a favourable decision and should also not be provided or accepted. Employees should not pay for gifts, meals and entertainment personally to avoid having to report or seek approval.

Travelling

Travel (e.g. for due diligence, site visit or other business) and related items given or received should follow the same principles as for gifts, meals and entertainment. When travel or related items are given, payment should be made directly to the provider (as opposed to providing a reimbursement to the individual), whenever possible. Under no circumstances should cash or per diem reimbursements be provided.

Charitable donations

Do not solicit or offer donations to clients, suppliers, vendors, public officials or others in a manner which communicates that a donation is a prerequisite for future business or that the offer of a donation is intended to obtain or retain business and a business advantage.

We encourage our directors, officers and employees to contribute personal time and resources to charities and not-for-profit organizations. However, unless approved, you are prohibited from using TRIMCO's name, resources or business contacts for solicitation of donations. Charitable donations made by individuals on their own behalf should have no relationship to company business and must comply with local laws and regulations.

Requests for donations may take many forms (e.g. direct requests or indirect requests such as purchasing a table, a round of golf or otherwise contributing to an event designated to raise money for a particular charitable cause/organization). All requests for corporate donations to charities and other not-for-profit organizations (e.g. schools, hospitals, libraries, etc.) must be approved in advance by the person(s) designated to approve such donations. If you are requested by a public official to make a donation to a particular charity, please obtain approval before agreeing to or making the donation. Also consider conducting due diligence when the proposed charity or not-for-profit organization is not well-known or there may be question as the legitimacy of the organization as a charity or not-for-profit.

Political contributions and lobbying

Do not offer or make contributions to political parties, officials and/or candidates that might influence, or be perceived as influencing, a business decision.

Various jurisdictional laws and regulations impose specific restrictions and rules with respect to political contributions, including both those made on behalf of the company or made by individuals on their own behalf. Violation of these laws and regulations can carry significant penalties for TRIMCO.

To ensure that we do not violate laws and regulations regarding political donations in any country, no political donations, no matter how small or insignificant, should be made on behalf of TRIMCO (directly or indirectly).

Political donations made by individuals on their own behalf and unrelated to TRIMCO's business must comply with local laws and regulations.

Do not engage in any lobbying activities on behalf of the company without specific authorization.

Lobbying activities generally include attempts to influence the passage or defeat of legislation and may trigger registration and reporting requirements. In many jurisdictions, the definition of lobbying activity is extended to cover efforts to induce rule-making by executive branch agencies or other official actions of agencies, including the decision to enter into a contract or other arrangement.

You may not engage in lobbying activities on behalf of TRIMCO without the prior written approval of TRIMCO's CEO.

Record keeping

We record all our transactions in a complete, accurate and detailed manner so that the purpose and amount of the transaction is clear.

In addition to prohibiting bribery and corruption, anti-bribery legislation and other laws expressly require accurate and complete record keeping and the establishment and maintenance of an adequate system of internal controls. One purpose of these provisions is to prevent companies from concealing bribes and to discourage fraudulent accounting practices.

All transactions should be recorded completely, accurately and with sufficient detail so that the purpose and amount of any such payment is clear. No undisclosed or unrecorded funds or assets of TRIMCO should be established for any purpose. False, misleading, or artificial entries should never be made in the books and records of TRIMCO for any reason.

REPORTING BREACHES OF THIS POLICY

Internal reporting is critical to TRIMCO's success, and it is both expected and valued. You are required to be proactive and promptly report any suspected violations of this policy, or

any illegal or unethical behaviour of which you become aware, including, but not limited to, any situations where a public official or other party requests or appears to request an inappropriate benefit.

The confidentiality of reported violations will be maintained to the fullest extent possible, consistent with the need to conduct an adequate review and subject to applicable law.

Employees may report actual or potential misconduct or violations of the policy through TRIMCO's usual communication channels, which in first instance would be to your manager, as your manager is generally in the best position to resolve the issue. Alternatively, you may report to your manager's manager, HR or the Legal & Compliance team. Directors must report to the Chair of their Board of Directors.

In the event you do not wish to use the usual communication channels, you can always make a report through TRIMCO's whistleblower scheme "Ethics Hotline", which is available through our website and is managed by a third-party and allows for anonymous reporting of suspected violations.

Non-retaliation

We do not accept any form of retaliation or retribution against any person has filed a report based on the reasonable good faith belief that a violation of the policy has occurred or may in the future occur.

We expect all employees to feel empowered to speak up against breaches of this policy and all company leaders and managers to lead by example by upholding a strict non-retaliation approach and protection of reporters.

DISCIPLINARY ACTION FOR POLICY VIOLATIONS

Please note that violations of company procedures, policies or applicable laws may lead to appropriate disciplinary measures depending on the circumstances. In serious cases, this may include termination of employment or legal action, if deemed necessary.

CONTACT

If you have any questions on this policy, please contact:

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GOVERNANCE

Ultimate responsibility for compliance with this policy at TRIMCO falls with our CEO, Amy Wan. Operational oversight of it is managed by TRIMCO compliance team, in addition to our partners across our business units.

Owner of policy (TRIMCO entity)	Trimco Group (Hong Kong) Company Limited
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